Resolving Labour Disputes

Read about the provisions and steps to file a collective labour dispute and individual labour dispute.

Collective Labour Disputes

Collective labour disputes

Individual labour disputes

Key regulations for settling collective labour disputes:

- Article 56 of Federal Decree Law No. 33 of 2021 on the Regulation of Labour Relations in the Private Sector
- Article 32 of Cabinet Resolution No. 1 of 2022 on the Implementation of Federal Decree Law No. 33 of 2021 Regarding the Regulation of Labour Relations, and

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- Cabinet Resolution No. 46 of 2022 Concerning Formation of Collective Labour Disputes Committee.

Individual Labour Disputes

Key regulations for settling individual labour disputes

Legislation for the settlement of individual labor disputes

The UAE's laws guarantee the rights of both: the employer and the employee, especially in the event of a labour dispute between them. Both parties have the option of filing a labor complaint with Ministry of Human Resources and Emiratisation (MOHRE) through a few easy steps. The complaints will then be examined and settled amicably or referred to the judiciary, if an amicable settlement is not possible.

Laws regulating labour complaints in the UAE

The following laws provide for labour complaints in the UAE

1. Federal Decree Law No. 33 of 2021 on the Regulation of Labour Relations in the Private Sector
2. Cabinet Resolution No. 1 of 2022 on the Implementation of Federal Decree Law No. 33 of 2021 Regarding the Regulation of Labour Relations and
3. Ministerial Resolution No. 47 of 2022 on the Settlement of Labor Disputes and Complaints Procedures.

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1. Federal Decree Law No. 33 of 2021 on the Regulation of Labour Relations in the Private Sector

   (PDF, 250 KB)

Article 54 of the above Decree Law provides that if there is a dispute between the employer and the worker or if any of them is entitled to obtain any of the resulting rights of them, he shall submit a request to the ministry, which shall examine the request and take steps to settle the dispute amicably.

If a friendly settlement is not possible within 14 days from the date of application, the ministry shall refer the dispute to the competent court and provide a memorandum including a summary of the dispute, arguments of both parties and the ministry's recommendation.

Penalties or administrative actions may be taken against the establishment or the employer, only after settling or resolving the dispute as per the laws.

The ministry may for a maximum period of two months not use its right to direct the employer to pay the worker his wages, if the dispute causes the suspension of the worker's wages payment according to the Implementing Regulation.

However, the Minister may impose other administrative actions or measures on the establishment, in order to avoid the existing individual dispute from becoming a collective labour dispute.

2. **Cabinet Resolution No. 1 of 2022 on the Implementation of Federal Decree Law No. 33 of 2021 Regarding the Regulation of Labour Relations**

Article 31 of the Cabinet resolution No. 1 of 2022 on the Implementation of Federal Decree Law No. 33 of 2021 on the Regulation of Labour Relations provides that: Every worker whose complaint has been referred to the court by MoHRE, must quickly file a case and request an amendment of his employment status. The Minister may issue the necessary resolutions regulating the status of the worker and the establishment after referring the complaint to the judiciary. The worker shall have the right to claim two months' wages if he continues to work for the employer while the referred labour dispute is in the court.

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3. **Ministerial Resolution No. 47 of 2022 Regarding the Settlement of Labor Disputes and Complaints Procedures**

According to Ministerial Resolution No. 47 of 2022 Regarding the Settlement of Labour Disputes and Complaints Procedures (PDF, 350 KB) every worker whose labour complaint has been referred to the Labour Court must:

1. register the labour complaint with the competent court within a maximum period of 14 days from the date of approving the referral to the judiciary
2. refrain from working for another employer without obtaining a temporary work permit from the Ministry
3. submit a request to cancel the original work permit within 14 days from the date of issuance of the final judgment in the labour lawsuit, in the event of termination of the work relationship between the two parties
4. apply for a temporary work permit with a new employer during the process of the labour case, except when he was reported absent by his/her employer.

In cases where the labour complaint leads to the worker's cessation of work, his/her work permit will be cancelled after 6 months from the date of referring the complaint to the labour court.

4. **Ministerial Resolution No. 782 of 2023 Regulating the Process for Resolving Individual Labour Complaints**

According to Ministerial Resolution No. 782 of 2023 Regulating the Process for Resolving Individual Labour Complaints (PDF, 196 KB), MOHRE can make a final decision in labour disputes if:

1. the amount claimed is less than AED 50,000 or
2. the parties reach an amicable settlement, regardless of the claim's value.

However, if the disputed claim is more than AED 50,000 and the parties cannot agree on a resolution, MOHRE must refer the case to the judiciary.

- **Provisions as per the UAE Labour Law**

Article 54 of the Federal Decree Law No. 33 of 2021 on the Regulation of Labour Relations in the Private Sector, the 'UAE Labour Law', provides that:

- labour cases referred to the court must be accompanied with a memo giving a summary of the dispute, evidence of both parties and the comments of the labour department concerned
- the competent court will, within three days from the date of receiving the request, fix a hearing for the claim and notify the two parties.

According to Article 10, no claim for any rights due will be heard after one year from the date of violation.

Additionally, Article 55 of the UAE Labour Law exempts workers or their heirs from paying judicial fees at all stages of litigation and execution, for claims less than AED 100,000.

Labour Claims and Advisory Call Centre

Workers can seek assistance for any labour-related grievances or legal matters by contacting MoHRE's 'Labour Claims and Advisory Call Centre' on the toll-free number 80084.

Services channels

You can file a complaint and track its status through the following channels:

1. The ministry's website

2. The MoHRE app available on App Store and Google Play

3. Phone: 600-590-000 for complaints by the UAE's citizens.

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Related links from MoHRE:

- Laws and regulations
- Resolutions and circulars.

*Text provided by MoHRE

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